From R1–R7 to the Next Research Phase

Research progress, methodological evidence and questions for the team | Igor Caires Machado | 10 October 2026

Purpose. This note consolidates the sequence of work discussed with David Levi-Faur, clarifies the status of the four-instrument methodological exercise, and identifies issues on which colleagues' scientific advice is welcome. It supplements, rather than replaces, David's group update of 9 October. It does not assume that everyone has examined the underlying materials.

Research objective

The overarching question is how EU law organizes governance, not only what it regulates. David's relational-leximetrics framework examines how legal provisions constitute or recognize actors, relationships, functions, mechanisms, authority, discretion and accountability, and under what evidentiary conditions these can support higher-order claims about governance architectures. The supporting empirical work has concentrated on traceable, reproducible coding, especially regulatory intermediation.

How the work progressed

Stage	Contribution and current status
R1 · Legal universe	Defined an initial EU-law population and a separate calibration corpus before selecting instruments because they contain expected intermediaries. Legal identity, version and provenance are explicit.
R2 · R–I–T calibration	Calibrated relational rules: regulator, intermediary and target are roles in legally supported relationships, not permanent labels attached to organizations. Direct, negative and uncertain cases remain visible.
R3 · Dataset architecture	Structured linked analytical units for laws, actors, relationships, intermediary functions, mechanisms, evidence and decision provenance instead of treating every variable as an act-level attribute.
R4 · Digital portability	Tested structural extraction and variable parsimony on GDPR, DSA and the AI Act (1,404 extracted structural records). This was structural validation, not full digital R–I–T/mechanism coding.
R5 · Paired four-case test	Compared direct versus procedurally controlled applications of the same framework to SCF, CBAM, the AI Act and Directive 86/361/EEC, using the same legal source within each case.
R6 · Inferential safeguards	Located consequential disagreements in relational precision and upward inference from relations to configurations and architectures; explored controls over boundaries, coupling, uncertainty and stopping.
R7 · Substantive agenda	Developed comparative questions about intermediary centrality, who regulates intermediaries, delegation versus retained public authority, and variation across regulatory sub-regimes.

Interpretation. R1–R7 are linked research stages, not seven independently validated empirical studies. The immediate objective is to consolidate what the tests warrant, not to introduce a competing theoretical framework.

Four-case methodological demonstration

The most recent test paired reconstructions of four legally and substantively heterogeneous instruments: Regulation (EU) 2023/955 (Social Climate Fund, SCF); Regulation (EU) 2023/956 (CBAM); Regulation (EU) 2024/1689 (AI Act); and Council Directive 86/361/EEC (historical telecommunications terminal-equipment approval). The original legal sources were fixed within cases. The two arms differed in procedural explicitness, not in the underlying conceptual framework.

Instrument	Issue illustrated by the comparison
SCF	Whether provisions within one regulation warrant attribution of a single whole-instrument architecture.
CBAM	Whether the legally specified parties to a transaction are retained accurately, and how to bound linked regulatory arrangements.
AI Act	Whether greater decomposition into subconfigurations clarifies or instead obscures grouping decisions.
Directive 86/361	How external normative and institutional dependencies constrain architectural claims from the focal instrument alone.

What was observed—and what it cannot establish

The paired comparison generated 264 comparative units and 56 arm-blinded disagreement-review cards. Of 96 material differences, 1 concerned evidence-level propositions, 30 concerned relational propositions and 65 concerned configurational, architectural or epistemic claims. These are descriptive differences between two model-assisted procedures, not independently validated errors or evidence of causal superiority.

Six purposively selected cards were assessed preliminarily by the researcher under arm-blind conditions; the remaining 50 were not human-adjudicated. The six are not independent assessments: the assessor designed the exercise, and written reasons were not captured at the time. Both reconstructions also used the same model, so the impact of the safeguards is confounded with other features of prompting. The project must not claim statistical reliability, external validity, or completed validation from this exercise.

Emerging methodological synthesis

- Keep legal-source provenance, legal status and reference date attached to observations.
- Specify named relational parties, direction, legal modality and the source provision before aggregation.
- Demand an explicit membership/boundary rationale and evidence of coupling before making a whole-architecture claim.
- Record constitutive dependencies on external instruments; permit candidate, indeterminate and stop-below-architecture outcomes.
- Remove redundant layers that increase documentation without measurably improving interpretation.

The substantive opportunity is to examine not only regulation through intermediaries, but also the legal mechanisms by which intermediaries themselves are recognized, accredited, overseen or sanctioned. Documentary coding describes formal legal arrangements; it does not by itself establish actual implementation or effectiveness.

Where the project stands, as of 10 October 2026

In his group message of 9 October, David endorsed integration and methodological simplification: carry forward a limited set of safeguards within relational leximetrics, conduct a further blinded validation/adjudication exercise, and then consider freezing a stable coding Version 1 before scaling comparative inquiry. This remains a proposed sequence; no new protocol version has been declared approved.

In subsequent correspondence, David expressed a preference for retaining the four instruments at this stage and suggested they could underpin a methodological paper. He supported, in principle, reassessing approximately 12 of the 56 existing review decisions—including independent reconsideration of the six preliminarily assessed—but requested advice from colleagues on whether the cases provide adequate variation. He explicitly identified environmental and digital expertise as important to that assessment.

Questions on which the group's advice would be valuable

- Case selection. Do the four instruments provide sufficiently informative methodological variation in formal governance arrangements and intermediation, given differences in policy domain, period and legal design? If not, what gap most clearly justifies a change?
- Conceptual coherence. Are our relational units, intermediary definitions and proposed architecture-inference safeguards compatible with the group's conceptual work and existing codebooks? Which distinction is most at risk of being lost?
- Validation design. What would make a small, genuinely independent and adequately documented adjudication exercise useful for a methods paper? What cannot responsibly be concluded from around 12 decisions?
- Publication and sequence. Is a bounded methods demonstration a worthwhile complement to David's conceptual paper, before undertaking the larger comparative investigation? What should be simplified or deferred?

Proposed next actions—not yet authorizations

Next step	Status
Collect colleagues' comments on case variation and methodological risks.	Open scientific consultation
Prepare a reasoned shortlist of around 12 review decisions and an independent reassessment/adjudication procedure.	Draft for team approval
Consolidate essential safeguards into a short coding protocol and outline the possible methods paper.	Draft; no Version 1 freeze
Only after approval: appoint independent reviewers, control blinding/exposure and conduct adjudication.	Not started / not authorized

Participation. No specific coding or adjudication assignment is being made by this note. Brief written comments, a challenge to a key assumption, or suggestions for relevant additional evidence would already be useful. If any colleague may later undertake blind review, the review materials and disclosure of previous results must be managed separately.

Project records underlying this briefing

Primary records: R1–R7 Work Summary (9 October 2026); R4 Digital Validation Memo; Four-Case Comparative Synthesis (8 October 2026); From Coding to Architecture—Final Note for David (October 2026); David's group email (9 October) and subsequent correspondence (10 October).

Access: R1–R7 presentation | R4 memo

Evidence note. Figures and descriptions reproduce internal project records, not independently replicated or peer-reviewed findings. Additional raw records, codebooks and masked decision packages should be shared in a controlled manner according to the reviewer's role.